

June 26, 2026, Civil Law & Motion Tentative Rulings

1. CU0001285 17031 LLC vs. Jacks, Joseph, et al. (and consolidated case)

Defendants Dan Irish and 17031 LLC's motion for judgment on the pleadings in consolidated case no. CGC-24-613115, is granted with leave to amend.

Request for Judicial Notice

Dan Irish ("Irish") and 17031 LLC's ("17031") request for judicial notice of (1) the unlawful detainer complaint filed by 17031 against Joseph Jacks ("Jacks") and Blaine Schanfeldt ("Schanfeldt") on December 21, 2022, Case No. CL0000471 ("UD case"); (2) Answer, filed January 5, 2023 ("UD Answer"); (3) Minute Order of January 18, 2023; and (4) First Amended Complaint in Case No. CGC-24-613115 ("SF FAC"), are granted. See Evidence Code § 452(d).

Jacks and Schanfeldt's request for judicial notice of Exhibit A is denied as it is an *unofficial* transcript from the UD case. Under California Code of Civil Procedure section 273, the only transcript that is prima facie evidence of testimony and proceedings is the official certified transcript prepared and certified by the court's official reporter or reporter pro tempore. A rough draft transcript is not certified and cannot be used, cited, or transcribed as the official record. *Id.* In addition, there has been no sufficient showing that Exhibit A is subject to judicial notice under Evidence Code section 452(d) (records of any court of this state) or 452 (h) (facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy).

Legal Standard

A party may bring a motion for judgment on the pleadings ("JOP") after filing an answer and the time to demurrer has expired. Code Civ. Proc. § 438(b)(1) and (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548. The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. Code Civ. Proc., § 438(d). Essentially, a JOP performs the same function as a general demurrer, *i.e.*, it attacks only the defects disclosed on the face of the pleading or by matters that are judicially noticed. *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999. "In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged." *Fire Ins. Exch. v. Super. Ct.* (2004) 116 Cal.App.4th 446, 452. "The trial court may grant a motion for judgment on the pleadings with or without leave to amend." *Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1175 *citing* Code Civ. Proc. § 438(h)(1). "Whether a motion for judgment on the pleadings should be granted with or without leave to amend depends on whether there is a reasonable possibility that the defect can be cured by amendment." *Ibid.* (quotations omitted). "[I]t is an abuse of discretion to grant a motion for judgment on the pleadings without leave to amend if there is any reasonable possibility that the plaintiff can state a good cause of action." *Id.* at 1176 (quotations omitted).

Judgment on the Pleadings Based on Res Judicata

“Res judicata” describes the preclusive effect of a final judgment on the merits, and prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them. *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 896. Collateral estoppel, or issue preclusion, precludes relitigation of issues argued and decided in prior proceedings. *Id.*

“Under the doctrine of res judicata, a valid, final judgment on the merits is a bar to a subsequent action by the parties or their privies on the same cause of action.” *Shine v. Williams-Sonoma, Inc.* (2018) 23 Cal.App.5th 1070, 1076 (quotations omitted). “A second aspect of the res judicata doctrine is issue preclusion, also known as collateral estoppel.” *Ibid.* “Under this aspect of the doctrine, the prior judgment is res judicata on matters which were raised or could have been raised, on matters litigated or litigable. ...” *Ibid.* “Collateral estoppel precludes the litigation of a claim that was related to the subject matter of the first action and could have been raised in that action, even though it was not expressly pleaded.” *Ibid.* Res judicata can apply where a previous action was dismissed based on a court-approved settlement agreement. *Ibid.*

“[A] demurrer based on res judicata is properly sustained only if the pleadings and judicially noticed facts conclusively establish the elements of the doctrine.” *Planning & Conservation League v. Castaic Lake Water Agency* (2009) 180 Cal. App. 4th 210, 231.

Discussion

17031 and Irish argue that all of the causes of action in the SF FAC, except the twelfth cause of action, are barred because the allegations are encompassed by the parties’ settlement of “any and all claims related to the tenancy” in the prior UD case. The Court agrees.

At bar, the minute order in the unlawful detainer case states:

This resolution resolves any and all claims Parties may have related to the tenancy, including but not limited to Defendants’ right to claim they are owed sums of money for work performed at the residence. Exempt from this resolution are any claim Defendants may have that they are owed money for purchase of items utilized for installing or operating the network system, that will be left at the residence, that they have not previously been reimbursed for or any claims Plaintiff may have for claims of damage to the property.

Defendants’ RJN, Ex. C. The minute order also reflects an agreement for Jacks and Schanfeldt’s payment of rent, as well as a timeline and procedures for vacating the property. *Ibid.*

Based on the current record, 17031 and Irish are entitled to judgment on the pleadings with respect to causes of action one through eleven and thirteen as each of these claims are encompassed by the parties’ settlement reflected in the minute order, which “resolv[ed] any and all claims related to the tenancy.” None of these claims falls within the exemption as defined in the minute order (*i.e.*, any claim Defendants may have that they are owed money for purchase of items utilized for ... the network system).

That said, leave to amend shall be allowed as there is a reasonable possibility that Jacks and Schanfeldt can state a good cause of action. Any amended complaint shall be filed and served within 10 days after service of the order after hearing.

2. CU0001849

Gregory Thrush vs. Jose Antonio Valdovinos

Plaintiff Gregory Thrush's unopposed application for right to attach order and order for issuance of writ of attachment is granted. Plaintiff shall advise the Court whether the previously issued temporary protective order shall be dissolved or otherwise.

Legal Standard

"Attachment is an ancillary or provisional remedy to aid in the collection of a money demand by seizure of property in advance of trial and judgment." *Rreef America Reit II Corp, YYYY v. Samsara Inc.* (2023) 91 Cal.App.5th 609, 616–617 (quotations omitted).

"Upon the filing of the complaint or at any time thereafter, the Plaintiff may apply ... for a right to attach order and a writ of attachment by filing an application for the order and writ with the Court in which the action is brought." Code Civ. Proc. § 484.010. "Except as otherwise provided by statute, an attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500)" Code Civ. Proc. § 483.010 (a).

"Before an attachment order is issued, the court must find all of the following: (1) the claim upon which the attachment is based is one upon which an attachment may be issued; (2) the applicant has established 'the probable validity' of the claim upon which the attachment is based; (3) the attachment is not sought for a purpose other than the recovery upon which the request for attachment is based; and (4) the amount to be secured by the attachment is greater than zero." *Rreef America Reit II Corp, YYYY*, 91 Cal.App.5th at 617, citing Code Civ. Proc. § 484.090(a).

"The plaintiff has the burden of establishing the probable validity of the claim upon which the attachment is based." *Ibid.* "If, in addition to the findings required by subdivision (a), the court finds that the defendant has failed to prove that all the property sought to be attached is exempt from attachment, it shall order a writ of attachment to be issued upon the filing of an undertaking as provided by Sections 489.210 and 489.220." Code Civ. Proc. § 484.090(b).

Analysis

Plaintiff seeks attachment based on a claim for breach of oral contract. "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.

At bar, Plaintiff's evidentiary showing rests primarily on the declaration of attorney Auerbach, as well as various discovery responses by Defendant. Included is an excerpt from a deposition of Defendant where, in substance, Defendant confirms that Plaintiff made a \$200,000 investment